

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO.		PAGE 1 OF 39			
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30									
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C25726Q0448			
						6. SOLICITATION ISSUE DATE 05-06-2026			
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Mr. Shawn R. Reinhart				b. TELEPHONE NO. (No Collect Calls) 254-421-6661			
						8. OFFER DUE DATE/LOCAL TIME 06-05-2026 10AM CDT			
9. ISSUED BY Department of Veterans Affairs Central Texas Veterans HCS 1901 Veterans Memorial Dr. Building #171 Temple, TX 76504				10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: 541380 ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) SIZE STANDARD: \$19 Million					
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS NET 30		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A			
						14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP			
15. DELIVER TO Department of Veterans Affairs South Texas Veterans HCS 7400 Merton Minter St. San Antonio, TX 78229				16. ADMINISTERED BY Department of Veterans Affairs Central Texas Veterans HCS 1901 Veterans Memorial Dr. Building 171 Temple, TX 76504					
17a. CONTRACTOR/OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY			
						This is accomplished through the Tungsten Network located at: http://www.fsc.va.gov/einvoice.asp This is mandatory and the sole method for submitting invoices. PHONE: (877) 353-9791 FAX: (512) 460-5540			
TELEPHONE NO. UEI: EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM					
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER									
19. ITEM NO.		20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT			
						23. UNIT PRICE			
						24. AMOUNT			
		The Contractor shall provide Sterile Processing Systems testing, maintenance, and repair of sterile processing water systems testing IAW the Statement of Work (SOW). Acquisition is being conducted IAW FAR Part 12. Periods of Performance Base Year: 30 June 2026 - 29 June 2027 1st Option Year: 30 June 2027 - 29 June 2028 2nd Option Year: 30 June 2028 - 29 June 2029 3rd Option Year: 30 June 2029 - 29 June 2030 4th Option Year: 30 June 2030 - 29 June 2031 Site Visits to be conducted on May 15, 2026 as follows (all times are Central Daylight Time): Audie Murphy: 9 AM; Dental: 11 AM; NW 151: 12:30 PM; NW 151: 12:30 PM; Kerrville: 3 PM Refer to Instructions of Offerors and Evaluation Factors on pages 33 to 38 for additional details. (Use Reverse and/or Attach Additional Sheets as Necessary)							
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page						26. TOTAL AWARD AMOUNT (For Govt. Use Only)			
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. ADDENDA ☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED						☒ ARE ☐ ARE NOT ATTACHED. ☐ ARE ☐ ARE NOT ATTACHED			
30a. SIGNATURE OF OFFEROR/CONTRACTOR						31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)				30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Mr. Shawn R. Reinhart Contracting Officer			
						31c. DATE SIGNED			

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C257
 Department of Veterans Affairs
 Central Texas Veterans HCS
 1901 Veterans Memorial Dr. Building #171
 Temple, TX 76504

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Monthly upon completion, inspection and acceptance

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Audie Murphy SPS - 7400 Merton Minter Blvd, San Antonio, TX. Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	12.00	MO		
0002	Dental SPS - 8410 Data Point Rm 110, San Antonio, TX Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	12.00	MO		
0003	Kerrville SPS - 3600 Memorial Blvd., Kerrville, TX Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	12.00	MO		
0004	Northwest Healthcare Center SPS - 9939 State Hwy 151, San Antonio, TX Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	12.00	MO		
0005	Emergency Services - Repairs and Associated Additional Testing required after emergency repairs. A quote will be submitted for this Line Item and MUST be approved by the CO/COR prior to any work being performed. Contractor shall only bill for actuals. This is a not to exceed amount per year of \$140,000.00. Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	1.00	YR		
0006	Retained Services of Certified Water Treatment Specialist (Recommended per ST-108) Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	12.00	MO		
0007	Base Year Only. The installation of in-line continuous pH, Conductivity, TDS, Resistivity, Salinity, Temperature, Flow meter monitoring equipment system for all four (4) sites (Audie Murphy, Data Point, NWHCC and Kerrville). In-line continuous pH, Conductivity, Flow monitoring equipment system (ALM, NWHCC-151, Data Point and KD) Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	10.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0008	Base Year Only Critical Water System Upgrades • Upgrades to Kerrville SPS by installing new RO System and associated new distribution and return loop and test ports for all equipment. • For Data Point, install RO distribution and return loop system, and test ports for all equipment. • Add DI tanks, Carbon Filters tanks for Critical Water for ALM, Kerrville, Dental and Northwest 151. Contract Period: Base POP Begin: 06-30-2026 POP End: 06-29-2027	1.00	JB		
1001	Audie Murphy SPS - 7400 Merton Minter Blvd, San Antonio, TX. Contract Period: Option 1 POP Begin: 06-30-2027 POP End: 06-29-2028	12.00	MO		
1002	Dental SPS - 8410 Data Point Rm 110, San Antonio, TX Contract Period: Option 1 POP Begin: 06-30-2027 POP End: 06-29-2028	12.00	MO		
1003	Kerrville SPS - 3600 Memorial Blvd., Kerrville, TX Contract Period: Option 1 POP Begin: 06-30-2027 POP End: 06-29-2028	12.00	MO		
1004	Northwest Healthcare Center SPS - 9939 State Hwy 151, San Antonio, TX Contract Period: Option 1 POP Begin: 06-30-2027 POP End: 06-29-2028	12.00	MO		
1005	Emergency Services - Repairs and Associated Additional Testing required after emergency repairs. A quote will be submitted for this Line Item and MUST be approved by the CO/COR prior to any work being performed. Contractor shall only bill for actuals. This is a not to exceed amount per year of \$140,000.00. Contract Period: Option 1 POP Begin: 06-30-2027 POP End: 06-29-2028	1.00	YR		
1006	Retained Services of Certified Water Treatment Specialist Contract Period: Option 1 POP Begin: 06-30-2027 POP End: 06-29-2028	12.00	MO		
2001		12.00	MO		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	Audie Murphy SPS - 7400 Merton Minter Blvd, San Antonio, TX. Contract Period: Option 2 POP Begin: 06-30-2028 POP End: 06-29-2029				
2002	Dental SPS - 8410 Data Point Rm 110, San Antonio, TX Contract Period: Option 2 POP Begin: 06-30-2028 POP End: 06-29-2029	12.00	MO		
2003	Kerrville SPS - 3600 Memorial Blvd., Kerrville, TX Contract Period: Option 2 POP Begin: 06-30-2028 POP End: 06-29-2029	12.00	MO		
2004	Northwest Healthcare Center SPS - 9939 State Hwy 151, San Antonio, TX Contract Period: Option 2 POP Begin: 06-30-2028 POP End: 06-29-2029	12.00	MO		
2005	Emergency Services - Repairs and Associated Additional Testing required after emergency repairs. A quote will be submitted for this Line Item and MUST be approved by the CO/COR prior to any work being performed. Contractor shall only bill for actuals. This is a not to exceed amount per year of \$140,000.00. Contract Period: Option 2 POP Begin: 06-30-2028 POP End: 06-29-2029	1.00	YR		
2006	Retained Services of Certified Water Treatment Specialist Contract Period: Option 2 POP Begin: 06-30-2028 POP End: 06-29-2029	12.00	MO		
3001	Audie Murphy SPS - 7400 Merton Minter Blvd, San Antonio, TX. Contract Period: Option 3 POP Begin: 06-30-2029 POP End: 06-29-2030	12.00	MO		
3002	Dental SPS - 8410 Data Point Rm 110, San Antonio, TX Contract Period: Option 3 POP Begin: 06-30-2029 POP End: 06-29-2030	12.00	MO		
3003	Kerrville SPS - 3600 Memorial Blvd., Kerrville, TX	12.00	MO		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	Contract Period: Option 3 POP Begin: 06-30-2029 POP End: 06-29-2030				
3004	Northwest Healthcare Center SPS - 9939 State Hwy 151, San Antonio, TX	12.00	MO		
	Contract Period: Option 3 POP Begin: 06-30-2029 POP End: 06-29-2030				
3005	Emergency Services - Repairs and Associated Additional Testing required after emergency repairs. A quote will be submitted for this Line Item and MUST be approved by the CO/COR prior to any work being performed. Contractor shall only bill for actuals.	1.00	YR		
	This is a not to exceed amount per year of \$140,000.00.				
	Contract Period: Option 3 POP Begin: 06-30-2029 POP End: 06-29-2030				
3006	Retained Services of Certified Water Treatment Specialist	12.00	MO		
	Contract Period: Option 3 POP Begin: 06-30-2029 POP End: 06-29-2030				
4001	Audie Murphy SPS - 7400 Merton Minter Blvd, San Antonio, TX.	12.00	MO		
	Contract Period: Option 4 POP Begin: 06-30-2030 POP End: 06-29-2031				
4002	Dental SPS - 8410 Data Point Rm 110, San Antonio, TX	12.00	MO		
	Contract Period: Option 4 POP Begin: 06-30-2030 POP End: 06-29-2031				
4003	Kerrville SPS - 3600 Memorial Blvd., Kerrville, TX	12.00	MO		
	Contract Period: Option 4 POP Begin: 06-30-2030 POP End: 06-29-2031				
4004	Northwest Healthcare Center SPS - 9939 State Hwy 151, San Antonio, TX	12.00	MO		
	Contract Period: Option 4 POP Begin: 06-30-2030 POP End: 06-29-2031				
4005	Emergency Services - Repairs and Associated Additional Testing required after emergency repairs. A quote will be submitted for this Line Item and MUST be approved by the CO/COR prior to any work being performed.	1.00	YR		
	Contractor shall only bill for actuals.				

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	This is a not to exceed amount per year of \$140,000.00.				
	Contract Period: Option 4 POP Begin: 06-30-2030 POP End: 06-29-2031 LOCAL STOCK NUMBER: CLIN 0005				
4006		12.00	MO		
	Retained Services of Certified Water Treatment Specialist				
	Contract Period: Option 4 POP Begin: 06-30-2030 POP End: 06-29-2031				
				GRAND TOTAL	

B.3 DELIVERY SCHEDULE

ITEM NUMBER	SHIPPING INFORMATION	QUANTITY	DELIVERY DATE
0001-	SEE SCHEDULE	SEE	06/30/2026 -
4006	B.2	SCHEDULE	06/29/2031
		B.2	

B.4 PERFORMANCE WORK STATEMENT

Sterile Processing Services (SPS) Water Testing

1. **BACKGROUND.** South Texas Veterans Healthcare System facilities has a Sterile Processing Systems requirement for testing, maintenance, and repair of sterile processing water systems. SPS is a critical part of any Hospital as it ensures all clinical departments have a readily available supply of sterile equipment. One of the key pieces of equipment supporting any SPS is the direct critical water supply to SPS personnel and equipment.

1.1 The updated AAMI ST108:2023 Standard, which governs the processes and requirements for Sterile Processing, added requirements to the roster of locations needing monthly critical water sampling. Per the standard, the requirement to test critical water at “every point of use” has significantly raised the quantity of water samples needed each month. Current water sampling contracts only cover the bare minimum of testing locations at the source of Critical Water systems.

2. **SCOPE OF WORK.** The purpose of this service is to provide for the testing of water, maintenance, and repair of water systems to ensure effective water quality for processing medical devices. The testing shall include testing of **utility water, critical water and steam** per guidance published in **ANSI/AAMI ST108:2023, Water for the Processing of Medical Devices.** In the event that ST108 is updated during the life of the contract the Contractor shall use the most recent version unless informed differently.

2.1 ST108:2023 (ST108) covers the **minimum** requirements for the quality of water and steam purity necessary to effectively process medical devices. The VHA may require more stringent requirements or more frequent testing and maintenance of water systems for processing medical devices in addition to the minimum requirements called out in ST108; however, the ST108 is the current guidance used by the VHA.

2.1.1 The VHA prefers the Contractor schedule monthly work, testing at the beginning of the month. Ideally, test within the first week of every month to enable more time during a particular month for any retesting that may be required.

2.2 **PERIOD OF PERFORMANCE.** The period of performance will be for a base year, with four (4) option years.

Base Year:	30 June 2026 – 29 June 2027
1st Option Year:	30 June 2027 – 29 June 2028
2nd Option Year:	30 June 2028 – 29 June 2029
3rd Option Year:	30 June 2029 – 29 June 2030
4th Option Year:	30 June 2030 – 29 June 2031

3. **CONTRACTOR RESPONSIBILITY.** The Contractor shall maintain and repair the sterile processing equipment related to critical water production and the steam supported sterilization system equipment. The work shall include required maintenance, change of Deionized (DI) Tanks, system filters and Reverse Osmosis (RO) membrane changes and water testing per the frequencies noted in ST108. The Contractor shall perform quarterly RO system sanitization, Distribution Loop sanitization and replace RO membrane on quarterly basis. The locations for these services are listed below in paragraphs 3.2.1 through 3.2.4.

3.1 The Contractor shall provide all labor, materials, tools, equipment, applicable state licenses and permits to accomplish the requirements.

3.1.1 The Contractor shall provide all testing requirements as outlined by ST108 for testing quantity guides.

3.1.2 The Contractor shall provide a fully qualified Laboratory for processing of water samples to meet all metrics of ST108-2023. The Contractor shall ensure all laboratory certificates, credentials and capabilities are provided to the Contracting Officers Representative (COR).

3.1.3 The Contractor shall follow testing frequencies as described in ST108. For any testing completed, provide the results/reports back to the VHA as soon as possible after completion.

3.1.4 The Contractor shall install continuous in-line monitoring devices for pH, Conductivity and Flow Meters in the pump room for all sites at the critical water distribution loop out (Audie Murphy SPS, Dental SPS, Kerrville SPS and Northwest Healthcare Center SPS). The installed device shall be able to perform to the below table requirements.

In-Line Monitoring Device Table

	Conductivity	TDS	Resistivity	Salinity	pH	ORP/mV IN	Temperature
Ranges	0 μ S - 200 mS	0 ppm - 200 ppt	10 K Ω - 40 M Ω	0 ppm - 200 ppt	0 - 14 pH	$\pm$ 2000 mV	0 - 250°C
Accuracy	$\pm$ 1% of reading	$\pm$ 1% of reading	$\pm$ 1% of reading	$\pm$ 1% of reading	$\pm$ 0.01 pH	$\pm$ 2 mV	$\pm$ 0.1°C
Resolution	0.01 (<100 μ S) 0.1 (<1000 μ S) 1 (<10,000 μ S) 0.01 (<100 mS) 0.1 ($\leq$ 200 mS)	0.01 (<100 ppm) 0.1 (<1000 ppm) 1 (<10,000 ppm) 0.01 (<100 ppt) 0.1 ($\leq$ 200 ppt)	0.01 (<100 k Ω) 0.1 (<1000 k Ω) 0.01 (<10 M Ω) 0.1 ($\leq$ 40 M Ω)	0.001 (<10 ppt) 0.01 (<100 ppt) 0.1 ($\leq$ 200 ppt)	0.01 pH	1 mV	0.1°C/F
Auto Temperature Compensation	0-71°C 32-160°F	0-71°C 32-160°F	0-71°C 32-160°F	0-71°C 32-160°F	0-71°C 32-160°F	-	-
Adjustable Temperature Compensation	0 - 10%/°C	0 - 10%/°C	0 - 10%/°C	0 - 10%/°C	On/Off	-	-
Cond/TDS Ratios Preprogrammed	KCl, NaCl, 442™	KCl, NaCl, 442™	-	KCl, NaCl, 442™	-	-	-
Adjustable Cond/TDS Ratio Factor	0.20-7.99	0.20-7.99	-	0.20-7.99	-	-	-

COND / RES 1	Conductivity, Resistivity, TDS, or Salinity Sensor Input
COND / RES 2	Conductivity, Resistivity, TDS, or Salinity Sensor Input
pH / ORP	Myron L [®] Company model pH or ORP Sensor Input
mV IN	BNC Style mV Model Sensors
FLOW SW	Flow Switch Input
4-20 mA IN	4-20 mA Signal Input (<600 Ω)
FLOW / PULSE	Flow Rate and Volume Totalizer/Pulse Counter/Frequency Counter (0.5-50,000 Hz)
RTD	Temperature Sensor Input (1000 Ω RTD)
24 VAC / 12-24 VDC	Power Supply Input (1A Max)
RELAY #1	Normally Open or Normally Closed Relay Output (5A@30VDC, 8A@250VAC)

RELAY #2	Normally Open or Normally Closed Relay Output (5A@30VDC, 8A@250VAC)
RELAY #3	Normally Open or Normally Closed Relay Output (5A@30VDC, 8A@250VAC)
RA #1	Remote Alarm Output
RA #2	Remote Alarm Output
4-20 mA OUT	4-20 mA Signal Output (20-36VDC)
REC O/P	0-10 VDC Recorder Output (20mA Max)
RS-485	ASCII Serial Communications Output

3.1.5 The Contractor shall install tank capacity alarms (e.g., red/green indicator lights) are required for both Carbon and DI for all site (Audie Murphy SPS, Dental SPS, Kerrville SPS and Northwest Healthcare Center SPS).

3.1.6 The contractor shall provide all submittal for material and equipment installation for VA approval prior to installation. The contractor shall ensure that all installed equipment, devices meet ST 108 requirements.

3.1.7 When there is an increase in HPC, bacteria, or endotoxin, or fail test in any Point of use (POU), the contractor shall perform a re-test of that POU only within 7 Calander days.

3.1.8 Whenever there is intensive growth of bacteria or endotoxin in the system from pervious test that was performed, the Contractor shall perform Ozone Sanitization and three (3) days of testing within (five) calendar days.

3.1.9 The Contractor shall install additional sample test ports at locations marked "X" on Table 1- Audie Murphy SPS Location, Table 2- Dental (Datapoint) SPS Location, Table 3- Northwest Healthcare Center SPS Location and Table 4- Kerrville SPS location.

3.1.10 Whenever there is a modification to the system, the contractor shall perform sanitization and three days of testing for all points of use (POUs).

3.1.11 The Contractor shall provide all test results within (five) calendar days after testing.

3.2 The Contractor shall conduct a monthly water monitoring program as described for the following locations:

3.2.1 Audie Murphy SPS - 7400 Merton Minter Blvd, San Antonio, TX.

- Perform all testing per the reference tables in ST108.
- Perform all tests to comply with the frequencies required and listed in the associated ST108 tables.
- Maintain the VA's RO system and all supplied distribution equipment.
- Provide DI and carbon tanks, scale inhibitor monthly.
- Perform quarterly RO system sanitization, Distribution Loop sanitization and replace RO membrane on quarterly basis.
- Provide DI service tanks for the sanitary sinks within SPS monthly.
- Provide monthly quality report when tanks are exchanged.
- Provide monthly testing and service report.
- Replace all filters (pre & post) quarterly.
- Provide the filter replacement requirement information.

- Provide Endotoxin Filter as required annually.
- Provide monthly maintenance service for RO System and Distribution loop as required by ST108.

3.2.2 Dental SPS - 8410 Data Point Rm 110, San Antonio, TX.

- Perform all testing per the reference tables in ST108.
- Perform all tests to comply with the frequencies required and listed in the associated ST108 tables.
- Maintain the VA's RO system and all supplied distribution equipment.
- Provide DI and carbon tanks, scale inhibitor monthly.
- Perform quarterly RO system sanitization, Distribution Loop sanitization and replace RO membrane on quarterly basis.
- Provide DI service tanks for the sanitary sinks within SPS monthly.
- Provide monthly quality report when tanks are exchanged.
- Provide monthly testing and service report.
- Replace all filters (pre & post) quarterly.
- Provide the filter replacement requirement information.
- Provide Endotoxin Filter as required annually.
- Provide monthly maintenance service for RO System and Distribution loop as required by ST108.

3.2.3 Kerrville SPS - 3600 Memorial Blvd., Kerrville, TX

- Perform all testing per the reference tables in ST108.
- Perform all tests to comply with the frequencies required and listed in the associated ST108 tables.
- Maintain the VA's RO system and all supplied distribution equipment.
- Provide DI and carbon tanks, scale inhibitor monthly.
- Perform quarterly RO system sanitization, Distribution Loop sanitization and replace RO membrane on quarterly basis.
- Provide DI service tanks for the sanitary sinks within SPS monthly.
- Provide monthly quality report when tanks are exchanged.
- Provide monthly testing and service report.
- Replace all filters (pre & post) quarterly.
- Provide the filter replacement requirement information.
- Provide Endotoxin Filter as required annually.
- Provide monthly maintenance service for RO System and Distribution loop as required by ST108.

3.2.4 Northwest Healthcare Center SPS - 9939 State Hwy 151, San Antonio, TX

- Perform all testing per the reference tables in ST108.
- Perform all tests to comply with the frequencies required and listed in the associated ST108 tables.
- Maintain the VA's RO system and all supplied distribution equipment.
- Provide DI and carbon tanks, scale inhibitor monthly.
- Perform quarterly RO system sanitization, Distribution Loop sanitization and replace RO membrane on quarterly basis.
- Provide DI service tanks for the sanitary sinks within SPS monthly.
- Provide monthly quality report when tanks are exchanged.
- Provide monthly testing and service report.

- Replace all filters (pre & post) quarterly.
- Provide the filter replacement requirement information.
- Provide Endotoxin Filter as required annually.
- Provide monthly maintenance service for RO System and Distribution loop as required by ST108.

3.3 **CRITICAL WATER TEST POINTS OF USE BY LOCATION**

3.3.1 **Audie Murphy Location.** Rows noted with an “X” under the column “Location where Sample needs to be Collected” indicate sample location for collection requirements based off the “Frequency” column. Rows noted with an “X” under the column “Additional Sample Port Install Required to Collect Sample” indicates a sample port installation required for collection.

Table 1 – Audie Murphy SPS Location

No of Sample	Sample Location	Sample Type	Location where Sample needs to be Collected	Additional Sample Port Install Required to Collect Sample	Critical Water System Updates ?	Frequency of Testing for each port
1	Sink 1 - Cold	Utility	X			Quarterly
2	Sink 1 - Hot	Utility	X			Quarterly
3	Sink 1 Critical	Critical	X			Monthly
4	Sink 2 - Cold	Utility	X			Quarterly
5	Sink 2 - Hot	Utility	X			Quarterly
6	Sink 2 - Critical	Critical	X			Monthly
7	Sink 3 - Cold	Utility	X			Quarterly
8	Sink 3 - Hot	Utility	X			Quarterly
9	Sink 3 - Critical	Critical	X			Monthly
10	Sink 4 - Cold	Utility	X			Quarterly
11	Sink 4 - Hot	Utility	X			Quarterly
12	Sink 4 - Critical	Critical	X			Monthly
13	Washer 1 - Cold	Utility	X	X		Quarterly
14	Washer 1 - Hot	Utility	X	X		Quarterly
15	Washer 1 - Critical	Critical	X			Monthly
16	Washer 2 - Cold	Utility	X	X		Quarterly
17	Washer 2 - Hot	Utility	X	X		Quarterly
18	Washer 2 - Critical	Critical	X			Monthly
19	Cart Washer 1- Cold	Utility	X	X		Quarterly
20	Cart Washer - Hot	Utility	X	X		Quarterly
21	Cart Washer - Critical	Critical	X			Monthly
22	Rm. K112 - Sink Cold	Utility	X			Quarterly
23	Rm. K112 - Sink Hot	Utility	X			Quarterly
24	Rm. K112.1 AER	Utility	X			Quarterly

No of Sample	Sample Location	Sample Type	Location where Sample needs to be Collected	Additional Sample Port Install Required to Collect Sample	Critical Water System Updates ?	Frequency of Testing for each port
	(alternate the 2)					
25	Rm. E120 AER	Utility	X			Quarterly
26	RO Dist Loop Out	Critical	X			Monthly
27	RO Dist Loop In	Critical	X			Monthly
28	Steam Condensate #1 (House)	Steam	X			Quarterly
29	Sterilizer #4 (House Steam)	Steam	X			Quarterly
30	Sterilizer #5 (House Steam)	Steam	X			Quarterly
31	Sterilizer #13 (Self Made)	Steam	X			Quarterly
32	Sterilizer #12 (Self Made)	Steam	X			Quarterly
33	Ultra Sonic Washer #1	Critical	X			Monthly
34	Ultra Sonic Washer #1	Utility	X			Quarterly
35	Ultra Sonic Washer #2	Critical	X			Monthly
36	Ultra Sonic Washer #2	Utility	X			Quarterly
37	Ultra Sonic Washer #3	Critical	X			Monthly
38	Ultra Sonic Washer #3	Utility	X			Quarterly
39	Ultra Sonic Washer #4	Critical	X			Monthly
40	Ultra Sonic Washer #4	Utility	X			Quarterly

3.3.2 Datapoint Location (Dental Services). Rows noted with an “X” under the column “Location where Sample needs to be Collected” indicate sample location for collection requirements based off the “Frequency” column. Rows noted with an “X” under the column “Additional Sample Port Install Required to Collect Sample” indicates a sample port installation required for collection.

Table 2 – Dental (Datapoint) SPS Location

No of Sample	Sample Location	Sample Type	Location where Sample needs to be Collected	Additional Sample Port Install Required to Collect Sample	Critical Water System Updates?	Frequency of Testing for each port
1	Washer - Cold	Utility	X	X		Quarterly
2	Washer - Hot	Utility	X	X		Quarterly
3	Washer - Critical	Critical	X	X		Monthly
4	Ultrasonic 1 - Cold	Utility	X	X		Quarterly
5	Ultrasonic 1 - Hot	Utility	X	X		Quarterly
6	Ultrasonic 1 - Critical	Critical	X	X		Monthly
7	Ultrasonic 2 - Cold	Utility	X	X		Quarterly
8	Ultrasonic 2 - Hot	Utility	X	X		Quarterly
9	Ultrasonic - Critical	Critical	X	X		Monthly
10	Sink - Cold	Utility	X	X		Quarterly
11	Sink - Hot	Utility	X	X		Quarterly
12	Sink - Critical	Critical	X	X		Monthly
13	Sterilizer #1 (Stand Alone)	Steam	X			Quarterly
14	Sterilizer #2 (Standalone)	Steam	X			Quarterly
15	Loop Out Prior to Equipment	Critical	X	X		Monthly
16	RO Machine Port	Critical	X	X		Monthly

3.3.3 **Northwest Health Care Center – 151.** Rows noted with an “X” under the column “Location where Sample needs to be Collected” indicate sample location for collection requirements based off the “Frequency” column. Rows noted with an “X” under the column “Additional Sample Port Install Required to Collect Sample” indicates a sample port installation required for collection.

Table 3 – Northwest Healthcare Center SPS Location

No of Sample	Sample Location	Sample Type	Location where Sample needs to be Collected	Additional Sample Port Install Required to Collect Sample	Critical Water System Updates	Frequency of Testing for each port
1	Sink 1 - Cold	Utility	X			Quarterly
2	Sink 1 - Hot	Utility	X			Quarterly
3	Sink 1 Critical	Critical	X			Monthly
4	Sink 2 - Cold	Utility	X			Quarterly
5	Sink 2 - Hot	Utility	X			Quarterly
6	Sink 2 - Critical	Critical	X			Monthly
7	Washer 1 - Cold	Utility	X	X		Quarterly
8	Washer 1 - Hot	Utility	X	X		Quarterly
9	Washer 1 - Critical	Critical	X	X		Monthly
10	Washer 2 - Cold	Utility	X	X		Quarterly
11	Washer 2 - Hot	Utility	X	X		Quarterly
12	Washer 2 - Critical	Critical	X	X		Monthly
13	Cart Washer - Cold	Utility	X	X		Quarterly
14	Cart Washer - Hot	Utility	X	X		Quarterly
15	Cart Washer - Critical	Critical	X			Monthly
16	Ultrasonic - Cold	Utility	X	X		Quarterly
17	Ultrasonic - Hot	Utility	X	X		Quarterly
18	Ultrasonic - Critical	Critical	X			Monthly
19	RO Machine Point of Generation	Critical	X			Monthly
20	RO Loop Sample (In Pump Rm.)	Critical	X	X		Monthly

No of Sample	Sample Location	Sample Type	Location where Sample needs to be Collected	Additional Sample Port Install Required to Collect Sample	Critical Water System Updates	Frequency of Testing for each port
21	Loop Test Point near Ultrasonic	Critical	X	X		Monthly
22	Sterilizer # 7 (Processed RO)	Steam	X			Quarterly
23	Sterilizer # 8 (Processed RO)	Steam	X			Quarterly

3.3.4 **Kerrville Division.** Rows noted with an “X” under the column “Location where Sample needs to be Collected” indicate sample location for collection requirements based off the “Frequency” column. Rows noted with an “X” under the column “Additional Sample Port Install Required to Collect Sample” indicates a sample port installation required for collection.

Table 4 – Kerrville SPS Location

No of Sample	Sample Location	Sample Type	Location where Sample needs to be Collected	Additional Sample Location Port Install Required	Critical Water System Updates?	Frequency of Testing for each port
1	Sink 1 - Cold	Utility	X			Quarterly
2	Sink 1 - Hot	Utility	X			Quarterly
3	Sink 1 Critical	Critical	X			Monthly
4	Sink 2 - Cold	Utility	X			Quarterly
5	Sink 2 - Hot	Utility	X			Quarterly
6	Sink 2 - Critical	Critical	X			Monthly
7	AER #1	Utility	X	X		Quarterly
8	AER #2	Utility	X	X		Quarterly
9	Ultrasonic	Utility	X	X		Quarterly
10	Washer - Cold	Utility	X	X		Quarterly
11	Washer - Hot	Utility	X	X		Quarterly
12	Washer - Critical	Critical	X	X		Monthly

No of Sample	Sample Location	Sample Type	Location where Sample needs to be Collected	Additional Sample Location Port Install Required	Critical Water System Updates?	Frequency of Testing for each port
13	Test Port After DI System	Critical	X			Monthly
14	Sterilizer #1	Steam	X			Quarterly
15	Sterilizer #2	Steam	X			Quarterly

3.4 The Contractor shall provide a consolidated monthly report of all sample locations, results, parameters on a single report.

3.5 The Contractor shall provide immediate notification of any positive samples over the bacteria and endotoxin threshold per ST108.

3.6 The Contractor shall provide an annual balance of Emergency / On-call tests for any locations that require re-testing or per direction of VA.

3.7 The Contractor shall ensure Contractor staff adhere to all PPE requirements when testing in PPE required areas.

3.8 The Contractor shall ensure Contractor staff conduct a thorough test-location wipe down with alcohol wipes and utilizes latex or vinyl gloves to avoid accidental contamination of sample.

3.9 The Contractor shall ensure contracted staff personnel conduct flushing and sampling per Annex H, paragraph H.5. of ST-108.

3.10 The Contractor shall enforce a strict chain of custody of sampling so that samples are secured and shipped by one dedicated technician.

3.11 The Contractor shall immediately notify VA of any breach in chain of custody or shipping issues that would render the samples un-usable.

3.12 The Contractor shall coordinate with VA on providing re-tests.

3.13 The Contractor shall verify all existing utility installations and take appropriate action prior to working in the vicinity of utility services (electrical, plumbing, HVAC equipment).

3.14 The Contractor's policies and procedures shall comply with VA Privacy and Security policy, the Privacy Act and Health Insurance Portability and Accountability Act (HIPAA).

3.15 The Contractor's personnel shall obtain a short-term identification badge issued by the VA designee.

3.16 The badge shall be worn by the individual and prominently displayed while on VA property.

3.17 No employee of the Contractor shall enter the project site without a valid identification badge issued by the VA.

3.18 To obtain a short-term identification badge, Contractor personnel shall present to the VA designee a valid (non-expired) photo identification issued by a US federal, State, or local government agency.

3.19 The Contractor shall deliver sufficient technical documentation with all data deliverables to permit the VA to use the data.

3.20 The Contractor shall include Certified Water Treatment Specialist for supporting integration, qualification and validation of water treatment equipment and testing.

3.21 The Contractor shall install additional Sampling ports for water sample collections specified under each site location in each table under section 3.2.

3.23 The Contractor shall only follow guidance as provided by the Contracting Officer assigned and coordinate all work with the Contracting Officer's Representative (COR).

4. **CONTRACTOR AVAILABILITY AND RESPONSE.** The Contractor shall be available for servicing equipment 24 hours a day/7 day a week. The Contractor shall promptly reply and respond within 24 hours of initial telephone call notification placed for any of the SPS facilities. For equipment that belongs to the VA, the Contractor shall have no obligation to repair or replace parts that fail due to external causes, accidents not attributed to the Contractor, vandalism, natural disaster, power failures; abuse, misuse, or neglect of accessories; usage not in accordance with the product instructions; or servicing or repair not authorized by the Contractor.

5. **MAJOR REPAIRS/DISRUPTION.** Following any non-routine, major repairs/maintenance work where the distribution loop or key equipment has been disrupted, disconnected/replaced - the Contractor shall be required to thoroughly sanitize any supply lines, and perform RO sanitization service and distribution loop sanitization service (Ozone Storage and Sanitization, Set-up, and oxygen) on the sterile processing system. The Contractor shall perform three (3) consecutive validation tests after any major maintenance or disruptions of services to confirm the bacteria count is following ST108 water quality standards. The Contractor shall perform bacteria tests three (3) consecutive days, day one (1) test followed by two (2) more validation tests for day two (2), day three (3) to ensure the system is ready to use for sterile processing.

6. **SAMPLING REQUIREMENTS.** The Contractor shall refer to the tables above for sampling requirements required by ST108 testing for utility water, critical water, and steam.

6.1 **Three (3) categories of water quality per ST 108.** Three (3) categories of water quality in terms of the characteristics that are important for medical device processing and the level of treatment that may be needed.

6.1.1 **Utility Water:** Water as it comes from the tap that can require further treatment at the facility to achieve water quality measurement values outlined in Table 1. This water is mainly used for flushing, washing, and intermediate rinsing (e.g., rinsing between cleaning and disinfection).

6.1.2 **Critical Water:** Water that meets the water quality measurement values detailed in Table 1; to achieve these values, the water generally requires extensive treatment by a multi-step process that can include a pretreatment, does include primary treatment (e.g., RO and/or DI), storage, distribution, and can include final treatment to provide a level of assurance that microorganisms and inorganic and organic material are removed from the water. This water is mainly used for the final rinse after high-

level disinfection, for the final rinse for critical devices prior to sterilization and feedwater for process steam production.

6.1.3 Steam: vaporized water that is produced by a centralized boiler or a generator/heat exchanger near the sterilizer. When the steam is tested as a condensate, it should meet the specified criteria as defined in Table 5 in ST108.

6.1.4 Utility Water is predominantly used for medical device processing, except for final rinse, where Critical Water is recommended. At the point of production, Utility Water and Critical Water shall meet the requirements as specified in Table 2. Tap water can require treatment to meet these requirements. The bacteria level for Critical Water in Table 2 (< 10 CFU/mL [$< 10,000$ CFU/L]) is consistent with the Clinical & Laboratory Standards Institute (CLSI) guidelines.

6.2 Water Quality and Equipment Maintenance.

6.2.1 The Contractor shall ensure water quality and equipment maintenance requirements are compliant with the guidelines and parameters per ST108.

6.2.2 The Contractor shall provide for a monitoring and maintenance process to ensure compliance with the defined compliance parameters and associated frequencies as defined in Table 6 in ST108.

6.3 The Contractor shall provide for water quality monitoring frequency as defined in Table 7 in ST108.

6.4 The Contractor shall provide for water quality monitoring frequency at point-of-water as defined in Table 8 in ST108.

7. SAMPLING PER ST108 GUIDANCE.

7.1 Sample Collection: Critical Water samples, or other types of water when indicated, shall be collected from several locations within the distribution system to provide a representative microbial water quality of the system. In general, samples shall be collected at the beginning and end of the water distribution loop. A point-of-use in the distribution loop is a location where water enters equipment utilized to process medical devices. Where any storage tank is used, water shall be sampled at the end of the purification process and the exit of the storage tank. Samples shall always be collected before disinfection of the water treatment system. If repeat cultures are performed after the system has been chemically disinfected (e.g., with hydrogen peroxide, chlorine, or peracetic acid), the system shall be flushed completely before samples are collected. Before samples are collected, the storage tanks and distribution system shall be drained and flushed until residual disinfectant is no longer detected. For new systems, the water shall be cultured weekly until an established pattern has been determined. For established systems, the water shall be cultured monthly unless a greater frequency is dictated by historical data at a given institution.

7.1.1 Water samples shall be collected directly from outlet taps situated in different parts of the water distribution system. In general, the sample taps shall be opened, and the water shall run for at least 60 seconds (per ST-108) before a sample is aseptically collected in a sterile, endotoxin- free container. The South Texas VA Health Care Center recommends flushing points-of-use at least 120 seconds prior to drawing samples. The collection container shall not be made of polypropylene, as polypropylene has been shown to inhibit endotoxin detection [78]. At least 100 to 300 mL of water shall be collected. Sample taps shall be treated with a general disinfectant (e.g., alcohol) prior to sampling and shall be completely dried to prevent contamination of the collected sample disinfectant

residual from the sample tap. Bleach or other disinfectant solutions shall never be used. Bacterial replication is prevented by holding the sample on ice, or at 4 °C, until it is delivered to the laboratory for testing.

7.1.2 For bacteria test samples, sample analysis shall be initiated as soon as possible after collection to minimize changes in the bacterial population. The recommended maximum elapsed time between collection and **analysis is 8 hours (maximum transit time 6-hours, maximum processing time 2-hours)**. When analysis cannot begin within 8 hours, the Contractor shall maintain sample at a temperature below 4 °C but do not freeze. Maximum elapsed time between collection and analysis shall not exceed 24 hours.

7.2 Water sampling technique. Sampling shall be consistent in procedure and sampling locations to ensure the accurate monitoring of water quality.

7.3 Flushing. Sample points shall be flushed commensurate to the size of the water system and distribution loop. Biofilms can develop throughout the water system, including infrequently used valves or downstream connectors between the distribution loop and equipment. Flushing these areas with a high flow velocity across these surfaces can shear off fragile tops of biofilms possibility growing in these areas. A standardized flush before sampling can limit the microbial contribution from the sampling points. For consistent testing results, the Contractor shall thoroughly flush points of use test locations for at least 120 seconds.

7.4 Sampling containers. The appropriate sampling container shall be used to collect the water sample. The container shall be of the required quality not to introduce contamination into the test sample. For example, samples used in the sampling for bacterial endotoxin shall be of the appropriate quality (e.g., pyrogen-free).

7.5 Sampling technique. Valves/taps/hoses used for sampling shall be of the appropriate design to not contaminate the sample. For example, sampling locations do not provide a stagnant water environment when not in use and is accessible to the distribution loop disinfection process. Prior to sampling the sampling surfaces (e.g., valves, hoses) shall be disinfected both externally and internally to reduce microbial contamination. Aseptic technique shall be used for water collection.

7.6 Results exceeding specifications. When detecting microbial quality levels exceeding specification, the Contractor shall perform a repetition of the disinfection and sampling at the location to confirm the results. Upon confirmation of the exceedance, the Contractor shall take immediate action as required to reduce the microbial contamination.

7.6.1 The distribution loop shall be disinfected using methods described in ST108, Annex E, to ensure the microbial contamination is not being introduced through the distribution system. Automated instrument re-processors (e.g., washer–disinfectors, washer–decontaminators, AERs) shall be flushed with 1,000 ppm of a chlorine-releasing agent after the first instance of persistent unacceptable microbial levels is detected. Other agents that could be considered for flushing include chlorine dioxide, peracetic acid, hydrogen peroxide, and super oxidized water. Before the unit is flushed with any of these agents, the Contractor shall confirm with the re-processor manufacturer that the components of the machine are compatible with the disinfectant to be used in its intended concentration. The levels shall be monitored weekly by repeat testing until two (2) successive counts show that baseline levels have been achieved.

8. **HOURS OF OPERATION.** Normal duty hours are 8:00 a.m. through 4:30 p.m., Monday through Friday, not including federal holidays. The contractor can also schedule to perform maintenance work on weekend at Audie Murphy and Kerrville SPS site.

The Government observes the listed days as holidays. If the holiday falls on a Saturday, the Friday before is the holiday. If the holiday falls on a Sunday, the Monday after is the holiday:

New Year's Day	January 1st
Martin Luther King's Birthday	Third Monday in January
Washington's Birthday	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	June 19th
Independence Day	July 4th
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veterans Day	November 11th
Thanksgiving Day	Fourth Thursday in November
Christmas	December 25th

In addition to the days designated as holidays, the Government observes the following days:

- Any other day designated by Federal Statute
- Any other day designated by Executive Order
- Any other day designated by the President's Proclamation

The observance of such days by Contractor personnel shall not otherwise be a reason for an additional period of performance, or entitlement of compensation. In the event the Contractor's personnel work during the holiday, they may be reimbursed by the Contractor, however, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, other than their normal compensation for the time worked.

9. **CONTRACTING OFFICERS REPRESENTATIVE.** The Contracting Officer will delegate a Contracting Officer's Representative upon contract award.

10. **SAFETY PLAN.** The Contractor shall be required to provide a safety plan for the work to be performed under this contract before starting physical work. The plan shall include an Activity Hazard Analysis (AHA) focused on the essential areas of work where risks must be addressed. The Contractor shall provide Personal Protective Equipment (PPE) for the Contractor's employees and ensure all Contractor employees to include sub-contractors have and properly use the PPE. Protective lab coveralls, head covers (Bouffant caps), shoe covers, procedure masks and gloves are available from the VA, at each of the site locations; Contractors can use these items as supplied on-site by the VA for entering the Decontamination areas of the Sterile Processing Service. These items shall always be worn by all Contractor, sub-contractor personnel at each site location. The Contractor shall follow all OSHA (Office of Safety and Health Administration) and VHA Safety Guidelines and ensure their contracted personnel and all sub-contractors adhere to OSHA safety guidelines. The contractor shall be responsible to follow OSHA guidelines

11. **TUBERCULOSIS (TB) SCREENING.**

11.1 The Contractor shall provide written certification that all Contractor employees assigned to the worksite have had a pre-placement negative tuberculin screening within 90 days prior to assignment.

11.2 The Contractors shall be required to show documentation of negative TB screening for any additional workers who are added after the 90-day requirement before Contractor employees are allowed to work on the work site. **NOTE:** This can be the Center for Disease Control (CDC) and Prevention and two-step skin testing or a Food and Drug Administration (FDA)-approved blood test.

11.3 Contractor employees manifesting positive screening reactions to the tuberculin shall be examined according to current CDC guidelines prior to working on VHA property. If a Contractor employee is found without evidence of active (infectious) pulmonary TB, a statement documenting examination by a physician shall be on file with the Contractor noting that the employee with a positive tuberculin screening test is without evidence of active (infectious) pulmonary TB. If the employee is found with evidence of active (infectious) pulmonary TB, the Contractor employee shall be required to obtain treatment with a subsequent statement to the fact on file with the employer before being allowed to return to work on VHA property.

(END STATEMENT OF WORK)

(END OF SECTION B)

SECTION C - CONTRACT CLAUSES

C.1 ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul>

<https://www.va.gov/oal/library/vaar/>

FAR 52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	(NOV 2023)
FAR 52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	(JAN 2017)
FAR 52.204-9	SYSTEM FOR AWARD MANAGEMENT - MAINTENANCE	(JAN 2011)
FAR 52.204-13	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	(OCT 2018)
FAR 52.226-8	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	(MAY 2024)
FAR 52.222-50	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	(NOV 2025)
FAR 52.232-40	PROTEST AFTER AWARD (DEVIATION)	(MAR 2023)
FAR 52.233-3	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (DEVIATION)	(NOV 2025)
FAR 52.233-4	COMMERCIAL ADVERTISING	(NOV 2025)
VAAR 852.203-70	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION)	(MAY 2018)
VAAR 852.222-71	ADMINISTRATIVE CONTRACTING OFFICER	(NOV 2025)
VAAR 852.242-71	(End of clause)	(OCT 2020)

FAR 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed **6 months**.

The Contracting Officer may exercise the option by written notice to the Contractor within **15 days**.

(End of clause)

FAR 52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the

contracting agency subject to the provisions of 5 U.S.C.5341 or 5332. This Statement is for Information Only: It is not a Wage Determination

Employee Class

Monetary Wage-Fringe Benefits

See Bexar County WD in Section D

See Kerr County WD in Section D

(End of clause)

FAR 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VA Acquisition Regulation (VAAR) (48 CFR Chapter 8) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR VERIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (NOV 2022)

(a) Definition. for the Department of Veterans Affairs, "Service-disabled Veteran-owned small business concern or SDVOSB":

(1) Means a small business concern -

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR802.101, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been verified for ownership and control pursuant to 38 CFR part 74 and is listed in VA's Vendor Information Pages (VIP) database at <https://www.vetbiz.va.gov/vip/>; and

(v) The business will comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size and government contracting programs at 13 CFR parts 121 and 125, provided that any reference therein to a service-disabled veteran-owned small business concern or SDVO SBC, is to be construed to apply to a VA verified and VIP-listed SDVOSB, unless otherwise stated in this clause.

(2) The term "Service-disabled Veteran" means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term "small business concern" has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term "small business concern owned and controlled by Veterans with service-connected disabilities" has the meaning given the term "small business concern owned and controlled by service-disabled veterans" under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)), except that for a VA contract the firm must be listed in the VIP database (see paragraph (a)(1)(iv) of this clause).

(b) General.

(1) Offers are solicited only from VIP-listed SDVOSBs. Offers received from entities that are not VIP-listed SDVOSBs at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a VIP-listed SDVOSB who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) Representation. Pursuant to 38 U.S.C. 8127(e), only VIP-listed SDVOSBs are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible SDVOSB as defined in this clause, 38 CFR part 74, and VAAR subpart 819.70.

(d) Agreement. When awarded a contract action, including orders under multiple-award contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting requirements in 13 CFR 121.406(b) and 13 CFR 125.6. Unless otherwise stated in this clause, a requirement in 13 CFR parts 121 and 125 that applies to an SDVO SBC, is to be construed to also apply to a VIP-listed SDVOSB. For the purpose of limitations on subcontracting, only VIP-listed SDVOSBs (including independent contractors) shall be considered eligible and/or "similarly situated" (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required certification requirements in this solicitation (see 852.219-75 or 852.219-76 as applicable). These requirements are summarized as follows:

(1) Services. In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not VIP-listed SDVOSBs (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract

(2) Supplies/products.

(i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) General construction. In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs.

(4) Special trade construction contractors. In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not VIP-listed SDVOSBs.

(5) Subcontracting. An SDVOSB must meet the NAICS size standard assigned by the prime contractor and be listed in VIP to count as similarly situated. Any work that a first tier VIP-listed SDVOSB subcontractor further subcontracts will count towards the percent of subcontract

amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) Required limitations on subcontracting compliance measurement period. An SDVOSB shall comply with the limitations on subcontracting as follows:

[Contracting Officer check as appropriate.]

[X] By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(f) Joint ventures. A joint venture may be considered eligible as an SDVOSB if the joint venture is listed in VIP and complies with the requirements in 13 CFR 125.18(b), provided that any requirement therein that applies to an SDVO SBC is to be construed to apply to a VIP-listed SDVOSB. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) Precedence. The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause takes precedence over any inconsistencies between the requirements of the SBA Program for SDVO SBCs, and the VA Veterans First Contracting Program.

(h) Misrepresentation. Pursuant to 38 U.S.C. 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406-2 Causes for Debarment).

(End of clause)

VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING— CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) [X] *Services*. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219-73 or certified VOSBs listed in the SBA certification database as set forth in 852.219-74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

~~(ii) [] *General construction*. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219-73 or certified VOSBs listed in the SBA certification database as set forth in 852.219-74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.~~

(iii) ~~Special trade construction contractors. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219-73 or certified VOSBs listed in the SBA certification database as set forth in 852.219-74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.~~

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of Clause)

VAAR 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED BY REFERENCE (JAN 2008)

The following provisions or clauses incorporated by reference in this solicitation must be completed by the offeror or prospective contractor and submitted with the quotation or offer. Copies of these provisions or clauses are available on the Internet at the Web sites provided in

the provision at FAR 52.252-1, Solicitation Provisions Incorporated by Reference, or the clause at FAR 52.252-2, Clauses Incorporated by Reference. Copies may also be obtained from the contracting officer.

(End of Clause)

(End of Addendum 52.212-4)

(END OF SECTION C)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

Wage Determinations can be viewed at <https://sam.gov/>

Service Contract Act WD #: 2015-5253, Revision 29, dated Apr 28,2026 (Bexar County)

Service Contract Act WD #: 2015-5293, Revision 32, dated Apr 28,2026 (Kerr County)

(END OF SECTION D)

SECTION E - SOLICITATION PROVISIONS

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>

<https://www.va.gov/oal/library/vaar/>

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	JUN 2020
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023

(End of Provision)

E.2 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

- (1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
 - (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
 - (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
- (d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).
- (End of Provision)

E.3 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

**FAILURE TO SUBMIT A COMPLETE OFFER
IN ACCORDANCE WITH THE
INSTRUCTIONS CONTAINED IN THIS
ADDENDUM WILL RESULT IN REMOVAL
FROM FURTHER CONSIDERATION FOR
AWARD.**

**SUBMITTING OFFER TO ANY PERSON NOT BELOW WILL
BE CONSIDERED DIVULGING SOURCE SELECTION
INFORMATION, AND VIOLATION OF THE PROCUREMENT
INTEGRITY ACT.**

Submission of Questions and Proposals:

Questions: All questions shall be received by **Friday, May 29, 2026, at 10:00 am CST.** All questions submitted for this solicitation shall be electronically sent to the following email addresses: shawn.reinhart@va.gov. Please title email with **Solicitation Number, Questions.** Questions shall clearly identify which part of the solicitation. Questions received after the stated date and time may be addressed at the discretion of the Contracting Officer. Answers to questions will be addressed via an amendment to the solicitation and posted to <https://www.sam.gov>.

Proposals: All proposals are due **NLT Friday, June 5, 2026, at 10:00 am CST** via e-mail only to shawn.reinhart@va.gov. Quotes shall be received on or before the date and time specified in Block 8 of the SF 1449. Please title email with **Solicitation Number, Proposal Submission**. All proposals shall be submitted **in two (2) separate volumes** and labeled with RFQ Number, Offeror's Company Name, and the appropriate volume number. **All proposals shall be in a PDF format with the Solicitation Number, the Offerors' name and Volume number.** **PROPOSALS RECEIVED AFTER THE DUE DATE AND TIME WILL NOT BE CONSIDERED FOR AWARD. PROPOSAL SHALL NOT INCLUDE CAPABILITY STATEMENTS OR SBA LETTERS VERIFYING SDVOSB STATUS. FAILURE TO RETURN ALL REQUIRED DOCUMENTATION AS OUTLINED BELOW WILL REMOVE OFFEROR FROM FURTHER CONSIDERATION FOR AWARD.**

VOLUME I SHALL NOT CONTAIN THE PWS OR ANY CLAUSES AND PROVISIONS NOT REQUIRING TO BE FILLED OUT, SIGNED. DO NOT ADD ANY CLAUSES OR PROVISIONS TO YOUR OFFER THAT ARE NOT IN THIS SOLICITATION. THE FAR, PER EXECUTIVE ORDER, *RESTORING COMMON SENSE TO FEDERAL PROCUREMENT*, IS BEING REVISED. SEE FAR 52.252-2 FOR LINK.

OFFEROR'S ARE RESPONSIBLE FOR ENSURING THE DOCUMENTATION IN VOLUME I TECHNICAL AND VOLUME II REDACTED TECHNICAL ARE THE SAME.

VOLUME I: Shall be one (1) entire PDF document and contain only the following documentation in the order listed below. **VOLUME I SHALL NOT CONTAIN THE PWS OR ANY CLAUSES AND PROVISIONS NOT REQUIRING TO BE FILLED OUT, SIGNED, AND RETURNED. AT A MINIMUM THIS SHALL BE 4 PAGES.**

Solicitation, Offer and Award Documents, Representations and Certifications. This volume shall contain only the signed SF 1449, any SF30's, Section B.1 (filled out by the Offeror), Section B.2, and any clauses or provisions requiring fill-in and signature by the Offeror. **All Offeror's are required to complete Blocks 12, 17a, 30a, 30b, 30c, and Section B.1.a.** Block 12 (Discount Terms) refers to discount Contractor will give the Government for prompt payment in percentage (i.e., Net 20). **All Offeror's are required to fill out and return all Clauses and Provisions that have fill-ins. Failure to return all fill-in Clauses and Provisions will make Offeror ineligible for award. The Government will not accept Clauses and Provisions from SAM.gov, as SAM.gov does not contain VA Acquisition and Representation Clauses and Provisions.**

Price. This volume shall contain the Price using B.2 Schedule of Services continuation section. **An Excel spreadsheet may be used but shall in the same format as Schedule B.2.** The price proposal shall be specific, complete in every detail, and separate from the technical proposal. Prices shall be evaluated for fairness and reasonableness and will be compared against competing proposals and the independent Government cost estimate. Prices shall be listed as an all-inclusive Firm Fixed Unit Price that covers in full those services under each CLIN. **Pricing shall not include option pricing for a CLIN. If option pricing is provided the Government will use the higher price.**

Options. The Government will consider offers for award purposes by adding the total

price for all options to the total price for the basic requirement. **The total evaluated price will be based on the quantities identified in the schedule.** The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s). The Government will take the pricing for Option Year 4 and divide in half to determine the price for FAR 52.217-8. For award purposes the total price for all the options will be added to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the ordering period and option prices are significantly unbalanced. Evaluation of the option shall not obligate the Government to exercise the option.

Technical Approach. This volume shall contain **only** the offeror's technical approach for fulfilling the requirements of the PWS. The technical approach page count **DOES NOT** include any technical documentation the Government asks for. **DO NOT PROVIDE A CAPABILITY STATEMENT WITH YOUR TECHNICAL PROPOSAL. DO NOT RENAME OR ADD THE PHRASE CAPABILITY STATEMENT TO THE TECHNICAL APPROACH.**

Past Performance. The Government will obtain past performance information from CPARS. **Offerors shall only provide past performance where Offeror was the prime contractor. Submission shall include the contract number and not the solicitation number.** Emphasis will be on recent, relevant past performance. Recent is defined as work performed within the last 5 years. Relevant is defined as work similar in **size and scope** of the work described in the Performance Work Statement.

VOLUME II: Technical Redacted. This volume shall contain **only** the offeror's technical approach provided in Volume I. Redacted is defined as: edited especially in order to obscure or remove sensitive information. Sensitive information is defined as data that can identify the company (i.e., company name, company logo, names of personnel working for the company, referring to the company as the incumbent, naming subcontractor companies, subcontractor employees etc.).

Volume	Title	Digital Copies	Maximum Pages
I	Solicitation, Offer and Award Documents, and Representations and Certifications	1	No page limit (PDF)
I	Technical Approach (See Addendum to FAR 52.212-2 for what is being evaluated)	1	25 (PDF) Does not include Technical Exhibits
I	Price	1	No page limit (PDF and/or Excel)
I	Past Performance	1	No more than 5 references
II	Technical Approach (REDACTED)	1	25 (PDF)

NOTE: Pages that exceed the required page limitations will not be evaluated. Additional pages over the maximum allowed will be removed or not read and will not be evaluated by the Government.

All proposals shall be valid for 90 days from closing date of solicitation. **The Government will not accept more than one (1) proposal per Offeror. (This supersedes FAR 52.212-1(e),**

Multiple offers.) PROPOSALS RECEIVED AFTER THE DUE DATE AND TIME WILL NOT BE CONSIDERED FOR AWARD.

A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

SDVOSB's: Upon receipt of proposal, certification of status will be verified. The SBA's Small Business Search will be utilized to determine SDVOSB status and is located at: <https://search.certifications.sba.gov/>. **DO NOT SUBMIT SBA LETTERS VERIFYING SDVOSB STATUS.**

Failure to submit a complete offer in accordance with the instructions contained in this addendum WILL result in removal from further consideration for award.

(End of Addendum 52.212-1)

E.4 52.212-2 EVALUATION - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

- Technical
- Price
- Past Performance

~~Technical and past performance, when combined, are.~~

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

E.5 52.212-2 ADDENDUM to EVALUATION - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

The following Evaluation Criteria is incorporated into 52.212-2 as an addendum to the solicitation:

All quote submissions will be screened to ensure the minimum solicitation requirements have been met. Those requirements are outlined within the Addendum to FAR 52.212-1, Instructions to Offerors. **Failure to submit a complete offer will result in removal from further consideration for award.**

Quotes that met the minimum solicitation requirements will then be reviewed on an individual basis to determine Technical Capability when matched against the SOW and past performance suitability.

Next, the comparative evaluation will commence. Quotes will be compared against one another in a pairwise fashion to determine which quote provides the best overall value to the government using technical capability, past performance, and price.

The Government reserves the right to consider a quotation other than the lowest price that provides additional benefit(s). Quotations may exceed minimum requirements of the solicitation. The Government reserves the right to select a quotation that provides benefit to the Government that exceeds the minimum requirements of the solicitation but is not required to do so.

a. **Basis for Award.** The Government intends to award a single Firm-Fixed-Price (FFP) contract resulting from this solicitation to the offeror meeting or exceeding the requirements **in accordance with FAR Part 12.203(c). By submission of its offer, the offeror accedes to all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements as listed within the PWS. Failure to meet a requirement or inability to perform or provide all services requested shall result in an offer being removed from further consideration. Offerors shall clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale. The Government reserves the right to select a response that provides benefit to the Government that exceeds the minimum. The Government is not required to select a response that exceeds the minimum. Responses may exceed the minimum. Each response shall at a minimum meet the solicitation requirements. The Government is not requesting or accepting alternate proposals. The Contracting Officer reserves the right to award without exchanges. Exchanges are defined as seeking clarification.** Each initial offer should contain the offeror's best terms from a Technical Approach and Price standpoint.

b. Resulting contract shall be based on the Contractor's capability and understanding to provide the services or supplies listed in the Performance Work Statement as reflected in Technical Capability (Factor 1) and the proposed Price (Factor 2).

c. Option Periods. The Government will consider offers for award purposes by adding the total price for all option periods to the total price for the basic requirement. **The total evaluated price will be based on the estimated quantities identified in the schedule.** The Government may determine that an offer is unacceptable if the option period prices are significantly unbalanced. Evaluation of option periods shall not obligate the Government to execute and fund the option periods.

EVALUATION FACTORS AND CRITERIA. Offerors shall address in detail their capabilities to perform services by describing their proposed approach to each factor. All factors will be considered based solely on the proposal provided, to the extent in which the proposal demonstrates a clear understanding of the requirements, and the contractor's ability to meet those requirements. **Failure to meet a subfactor will result in an overall rating of "Did Not Meet" for the Technical Factor.**

Factor 1 - Technical Capability: Offerors shall address in detail its technical capabilities by describing their proposed approach to each sub-factor. Offeror's technical proposal shall address the feasibility of meeting contract requirements with respect to providing the VA with a high level of confidence in successful performance. Rating will be based upon the extent to which the

offer addresses each of the factors and sub-factor. All technical sub-factors will be evaluated based solely on the proposal provided, to the extent in which the proposal demonstrates a clear understanding of the requirements and problems involved in meeting or exceeding the standards for the various tasks, and to the extent in which uncertainties are identified and resolutions proposed. Proposals may exceed the minimum requirements; however, Offerors are cautioned that overzealous technical proposals may be determined by the Contracting Officer not to be in the best interest of the Government during the best value trade-off analysis. This factor will be used to determine the Offeror's ability to successfully manage the full range of contractual requirements, and background and relevant information regarding stability and strengths; each sub-factor is equally important.

Sub-Factor (a) - Understanding the Project.

- Provide a written plan which details the approach and sequencing to accomplish all the requirements of the Statement of Work.
- Demonstrate an understanding of the project and types of problems likely to be encountered, as evidenced by the completeness of the proposal and specific comments on procedures, technology, and proposed improvements.
- Demonstrate understanding of providing service within a sterile processing environment for medical device cleaning and care, knowledge of wearing proper sterile protective clothing, gloves, face masks/shields, foot coverings.
- Descriptions of the offeror approach to accomplishing these projects within the frequencies outlined in ST-108 and with appropriate staff are important.

Sub-Factor (b) - Experience and Qualifications.

- Experience and qualifications of the project team staff, particularly in providing sterile processing testing support, technical commercial services for a major federal agency or major medical center system (resumes required).

Factor 2 - Price The total evaluated price will be based on the estimated quantities identified in the schedule. Offerors shall submit their Price using the B.2 Price Schedule. The price proposal shall be specific, complete in every detail, and separate from the technical proposal. Line items for those option periods shall be sufficiently completed. Prices shall be evaluated for fairness and reasonableness and will be compared against competing proposals and the independent Government cost estimate. Prices shall be listed as an all-inclusive Firm Fixed Unit Price that covers in full those services under each CLIN.

Factor 3 - Past Performance: Past Performance information may also be obtained from other sources available to the Government to include but not limited to CPARS (Contractor Performance Assessment Reporting System) or other databases, interviews with Program Managers, and other Contracting Officers. A lack of past performance will NOT be considered a "negative." Past Performance will be rated recent, relevant past performance. Recent is defined as work performed within the last 5 years that is similar in **size and scope** of the work described in the Performance Work Statement. Relevant is defined as work similar in **size and scope** of the work described in the Performance Work Statement.

(End of Addendum to 52.212-2)

E.6 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.
(End of Provision)

E.7 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Email address: shawn.reinhart@va.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.8 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: EDProtests@va.gov.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of Provision)

(END OF SOLICITATION)